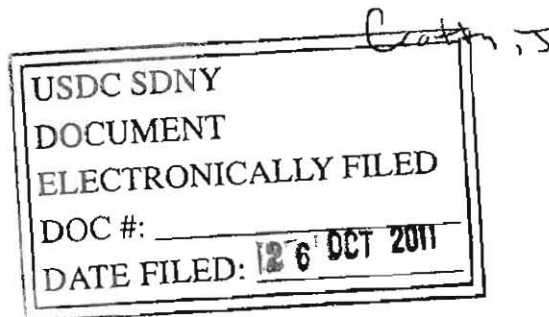




UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MARIEA BOWMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ASA BARNES, POLICE OFFICER KELVY
VASQUEZ, AND SGT. AMANJEET SANDHU,

Defendants.

**STIPULATION OF
SETTLEMENT AND ORDER OF
DISMISSAL AS TO
ATTORNEYS FEES**

08-cv-10123 (PAC)

-----X

WHEREAS, plaintiff commenced this action by filing a complaint on or about November 21, 2008, alleging that defendants violated his constitutional rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, defendant City of New York served plaintiff with a Rule 68 Offer of Judgment on January 19, 2011; and

WHEREAS, plaintiff accepted the Rule 68 Offer of Judgment on or about January 21, 2011;

WHEREAS, Judgment was entered, pursuant to Rule 68, on 8/19/2011:

WHEREAS, the parties entered into a Stipulation of Settlement and Discontinuance on 10/26, 2011, thereby resolving this matter as per plaintiff's claims, with the sole exception of the issue of reasonable attorney's fees, costs and expenses; and

WHEREAS, pursuant to the Stipulation of Settlement and Discontinuance executed by the parties on 10/26, 2011, plaintiff has assigned all right to attorneys' fees, costs, and expenses in this matter to his attorney, John Cobb, Esq. and Ronald W. Ramirez, Esq.; and

WHEREAS, the parties have now negotiated and agreed to resolve the issue of reasonable attorney's fees, costs and expenses without further proceedings;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

I. The City of New York hereby agrees to pay counsel for plaintiff, John Cobb, Esq. and Ronald W. Ramirez, Esq, the total sum of **Seventy Five Thousand Dollars (\$75,000.00)** in full satisfaction of all claims for costs, expenses and attorneys' fees arising out of any claims that were or could have been alleged by plaintiff in this action. In consideration for the payment of this sum, plaintiff and plaintiff's counsel agree to release the defendants, CITY OF NEW YORK, POLICE OFFICER ASA BARNES, POLICE OFFICER KELVY VASQUEZ, AND SGT. AMANJEET SANDHU, and any present or former employees and agents of the City of New York, from any and all liability, claims, or rights of action for costs, expenses and attorney's fees arising out of or connected with this action.

2. Nothing contained herein shall be deemed to be an admission by any of the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

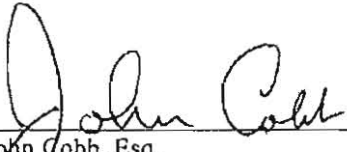
3. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York.

4. Plaintiff's counsel shall execute and deliver to defendants' attorney all documents necessary to effect this settlement.

5. The payment of the amount specified in paragraph "1" to counsel for plaintiff shall constitute the "reasonable attorney's fees, expenses and costs" paid pursuant to the accepted Rule 68 Offer of Judgment and the Stipulation of Settlement and Discontinuance executed by the parties in this matter on Jan. 21, 2011 OCT. 26, 2011. MK

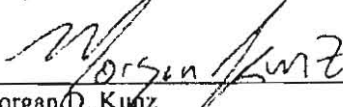
6. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto with respect to the question of attorney's fees, costs, and expenses arising out of or connected with this action, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the attorney's fees, expenses, and costs shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

COBB & COBB LAW FIRM
Attorneys for Plaintiff
724 Broadway
Newburgh, NY 12550
(845) 565 0500

By: 
John Cobb, Esq.
Attorney for Plaintiff

Dated: NEWBURGH, New York
OCT. 20, 2011

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
Attorney for Defendants
100 Church Street, Rm. 3-189
New York, New York 10007
(212) 788-0422

By: 
Morgan D. Kunz
Assistant Corporation Counsel

Dated: New York, New York
OCT. 26, 2011

SO ORDERED:


HONORABLE PAUL A. CROTTY
UNITED STATES DISTRICT JUDGE

Dated: New York, New York
OCT. 26, 2011

